



The Deepfake Dilemma: Cybercrime Prevention in the Philippines in the face of AI-fueled crimes

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The Danger of Deepfakes

The rise of Artificial Intelligence (AI) in the past decade has impacted the way users interact with the digital space. With AI, almost anything can be virtually generated at an incredible speed, and its commercialization and accessibility have granted users the power to yield it to their whims.

Among the prominent AI technologies used today are deepfakes, which are images, video, or audio that portray something non-existent in reality. These create 'fake' people, events, or things which individuals can customize according to what they want to generate. Deepfakes use a type of AI machine learning that requires multiple levels of code and processing in order to generate synthetic media. The use of deepfakes first became prolific in 2017, when videos of celebrities and other public figures were posted on reddit and later on other social media sites such as Facebook and Instagram.¹ As helpful as these may be, the dangers of such a technology became well known when these became catalysts for scams, pornography, and spreading disinformation.

Here in the Philippines, there have already been occurrences of scammers using AI to evade law enforcement. One instance was when the Criminal Investigation and Detection Group (CIDG) raided a condo unit in Mandaluyong City functioning as a cyber fraud center which used AI deepfakes to scam unsuspecting individuals.² The scammers specialized in love scams and investment scams wherein instead of using human models in live video chats to convince people to send them money, they generated deepfake female models to build credibility with their victims. The CIDG also uncovered that these scammers were part of a larger network that operated outside of the country.³

¹ Payne, L., Deepfake, <https://www.britannica.com/technology/deepfake>

² Tupas, E., Malaysian, 13 others nabbed in Mandaluyong scam hub, (September 28, 2025) <https://www.philstar.com/nation/2025/09/28/2475910/malaysian-13-others-nabbed-mandaluyong-scam-hub>

³ Medina, J., CIDG busts AI-powered scam hub operating out of Mandaluyong condo, (September 28, 2025) <https://kami.com.ph/philippines/179767-cidg-busts-ai-powered-scam-hub>



This is just one example among many other scammers who have not yet been caught, as the Philippines saw the highest growth in deepfake cases in 2024, and the Asia-Pacific region ranked the second highest recorded deepfake cases in the world after North America.⁴ These scams continue to evolve as law enforcement officers are just starting to grapple with the fact that these deepfake-fueled crimes exist.

This then begs the question: How effective can our current system of Cybercrime prevention be in the face of these new technologies exploited by the average criminal?

The Cybercrime Prevention Act of 2012

Deepfakes as Data

Republic Act No. 10175 or the Cybercrime Prevention Act of 2012 is the law that governs cyberspace data in the Philippines and addresses any legal issues that may arise from the misuse thereof. The broad term used in the law is computer data, which is defined as any representation of facts, information, or concepts in a form suitable for processing in a computer system including a program suitable to cause a computer system to perform a function and includes electronic documents and/or electronic data messages whether stored in local computer systems or online.⁵

It may be construed that the 'data' being referred to in the law exists in reality and has its rightful owner as it includes 'any representation of facts, information or concepts'. The electronic documents and/or electronic data messages stored in local computer systems or online being referred to is data that is readily available to a user who owns such data.

Data generated by AI on the other hand, do not necessarily fit this definition of data. Deepfakes especially, are generated by deep-learning AI algorithms that single out multiple streams of data from the internet and the public domain. The general consensus is that there is no universally accepted legal owner of AI-generated data because even if a human being initiates AI to entirely produce its content, it still uses various existing data not owned by that human being to generate it.⁶

⁴ Surasit, N., Criminal exploitation of deepfakes in South East Asia, <https://globalinitiative.net/analysis/deepfakes-ai-cyber-scam-south-east-asia-organized-crime/>

⁵ Section 3 (e), R.A. No. 10175 (Cybercrime Prevention Act of 2012)

⁶ Kontarova, T., Who Owns AI-Generated Content? Copyright, IP, and Legal Risks in the Age of Generative AI, (July 22, 2025) <https://aurum.law/newsroom/Who-Owns-AI-Generated-Content>



It can be argued then, that these synthetic media, or images, videos, audio or any other audiovisual content generated by AI ⁷ are a collection of data from different sources and users, which means that it has no rightful owner. If there is no owner of such data, there is no one to hold liable. Thus, it is even harder to track the individuals who ‘authored’ the generation of this synthetic data.

Deepfakes in Offenses

The Cybercrime Prevention Act of 2012 categorizes all cyber-related offenses and their corresponding penalties. These offenses are divided into three categories: a) Offenses against the confidentiality, integrity, and availability of computer data and systems, b) Computer-related offenses, c) Content-related offenses. ⁸

Under the category of offenses against the confidentiality, integrity, and availability of computer data and systems are illegal access, illegal interception, data interference, system interference, misuse of devices, and cyber-squatting.

These offenses do not commonly use AI because these require actual confidential data that exists within the user’s computer, or those data that only the user can provide. Hence, the generation of deepfakes and all other AI technologies are not typically applied here.

Under the category of Computer-related offenses are computer-related forgery, computer-related fraud, and computer-related identity theft.

Computer-related forgery refers to the input, alteration, or deletion of any computer data without right resulting in inauthentic data with the intent that it be considered or acted upon for legal purposes as if it were authentic, regardless whether or not the data is directly readable and intelligible; or the act of knowingly using computer data which is the product of computer-related forgery as defined herein, for the purpose of perpetuating a fraudulent or dishonest design. ⁹

Computer-related fraud refers to the unauthorized input, alteration, or deletion of computer data or program or interference in the functioning of a computer system, causing damage thereby with fraudulent intent. ¹⁰

⁷ Jayaraman, S., What is Synthetic Media? Types, Benefits, and Best Practices, (October 15, 2025) <https://learn.g2.com/synthetic-media>

⁸ Section 4, R.A. No. 10175 (Cybercrime Prevention Act of 2012)

⁹ Section 4 (b) (1), Ibid.

¹⁰ Section 4 (b) (2), Ibid.



Computer-related identity theft refers to the intentional acquisition, use, misuse, transfer, possession, alteration or deletion of identifying information belonging to another, whether natural or juridical, without right.¹¹

All of the offenses under this category may use deepfakes. The phrase 'regardless whether or not the data is directly readable and intelligible' means that deepfakes in themselves, as a product of multiple sources of data, can be read as computer-related forgery. In computer-related fraud, deepfake audio and video can be generated to impersonate authority figures and defraud innocent individuals. Even computer-related identity theft is made easier because deepfakes can literally steal the identity of a person, from their appearance to their mannerisms if generated with the right prompts.

Under the category of Content-related offenses are cybersex, child pornography, unsolicited commercial communications, and libel. Cybersex refers to the willful engagement, maintenance, control, or operation, directly or indirectly, of any lascivious exhibition of sexual organs or sexual activity, with the aid of a computer system, for favor or consideration.¹²

This has been the most common offense that uses deepfakes. In 2023, nearly 96% of generated deepfake videos are sexual and are posted across social media platforms despite restrictions on sexual content. These deepfakes are seldom flagged because there are no real people involved, as it is artificially generated.¹³ Yet, these videos are made to deceive the public into thinking that the generated content is real, and significantly implicate innocent people who are not even aware of these videos in the first place.

Child pornography refers to the unlawful or prohibited acts defined and punishable by Republic Act No. 9775 or the Anti-Child Pornography Act of 2009, committed through a computer system.¹⁴ It is any representation, whether visual, audio or written combination thereof, by electronic, mechanical, digital, optical, magnetic or any other means, of a child engaged or involved in real or simulated explicit sexual activities.¹⁵

Both the Cybercrime Prevention Act of 2012 and Anti-Child Pornography Act of 2009 clearly define what constitutes child pornography. The phrase 'a child engaged or involved in real or simulated explicit sexual

¹¹ Section 4 (b) (3), Ibid.

¹² Section 4 (c) (1), Ibid.

¹³ Szabó, M., Not so sexy: How to combat deepfakes and sextortion, (August 14, 2025), <https://www.eset.com/blog/en/home-topics/privacy-and-identity-protection/how-to-combat-deepfakes-and-sextortion/>

¹⁴ Section 4 (c) (2), R.A. No. 10175 (Cybercrime Prevention Act of 2012)

¹⁵ Section 3 (b), R.A. No. 9775 (Anti-Child Pornography Act of 2009)



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activities' can include deepfakes, as these are simulations of real children as well. In fact, the use of deepfakes to create Child Sexual Abuse Materials (CSAM) has become prevalent in dark web forums by the July of 2024, with over 3,500 new deepfake CSAMs uploaded that perpetrators have generated to depict 'hardcore' sexual scenarios.¹⁶ Deepfake child pornography has become a growing online industry, and the lack of regulation of the usage of deepfakes and other AI technologies in the creation of CSAMs has only encouraged this industry to flourish.

Unsolicited Commercial Communications refers to the transmission of commercial electronic communication with the use of computer system which seek to advertise, sell, or offer for sale products and services.¹⁷

This offense is most common in digital advertising, especially because social media messaging platforms have made enough personal information available that the commission of unsolicited commercial communications has become accessible. Platforms such as WhatsApp, Viber, and Telegram lack mechanisms of content moderation that bigger social media platforms have, which allows the spread of unsolicited commercial communications.¹⁸ Now with AI and deepfakes, this is made even more widespread. Deepfakes send fake audio recordings as voicemails, automated texts as spam, and pose as high-end investors or brokers in emails to entice people to buy products.

Libel refers to the unlawful or prohibited acts of libel as defined in Article 355 of the Revised Penal Code, as amended, committed through a computer system or any other similar means which may be devised in the future.¹⁹

Cyberlibel is a frequent offense committed in the digital space, especially because social media provides the means of publication of any malicious and defamatory aimed at destroying one's reputation. In February of 2025, cyberlibel cases in the Philippines saw an increase of 13.53% in comparison to cases in January, and have been rising since.²⁰ The dissemination of deepfakes in the aid of cyberlibel has also become extensive.

¹⁶ Artificial Intelligence and the Production of Child Sexual Abuse Imagery, <https://www.iwf.org.uk/about-us/why-we-exist/our-research/how-ai-is-being-abused-to-create-child-sexual-abuse-imagery/>

¹⁷ Section 4 (c) (3), R.A. No. 10175 (Cybercrime Prevention Act of 2012)

¹⁸ Desmarais, A., Report shows how messaging apps are used to spread political propaganda, (October 10, 2024), <https://www.euronews.com/next/2024/10/10/report-shows-how-messaging-apps-are-used-to-spread-political-propaganda>

¹⁹ Section 4 (c) (4), R.A. No. 10175 (Cybercrime Prevention Act of 2012)

²⁰ January vs February 2025: PNP ACG Records 13.53% Rise in Cyberlibel Cases. <https://acg.pnp.gov.ph/january-vs-february-2025-pnp-acg-records-13-53-rise-in-cyber-libel-cases>



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Now, it is much easier to pass deepfakes off as authentic, post these on social media, and use these to defame a person and their reputation.

The Regulatory Gap

While deepfakes are used in the commission of the offenses under the Cybercrime Prevention Act of 2012, there are no laws as of the moment that specifically combat the use of deepfakes and other AI technologies in cybercrimes. The lack of such legislation is already apparent because of the growing number of cybercriminals unapprehended using these technologies to their benefit. The current provisions set in 2012 are not enough, as these did not anticipate the advent of AI technology to grow at such a rapid rate.

Legislators have been making efforts to regulate the use of AI. These include House Bill No. 3214,²¹ which seeks to forbid the creation and distribution of deepfakes of a person's likeness without their consent, and Senate Bill No. 25,²² the Artificial Intelligence Regulation Act which aims to promote the ethical and responsible use of AI in the Philippines. Yet, none of these bills have passed into law.

AI was made to be assistive tools for human convenience. However, scarce regulation surrounding AI and its fast paced growth have led cybercriminals to exploit these tools as our current system of Cybercrime prevention struggles to keep up. Ultimately, the Philippines, much like the rest of the world, continues to wait for legislation as newer technologies emerge.

²¹House Bill No. 3214: An Act Establishing Protection Against Deepfakes, Recognizing the Right to One's Face, Body, and Voice, Providing Trademark Protection, and for Other Purposes,
https://docs.congress.hrep.online/legisdocs/basic_20/HB03214.pdf

²² Senate Bill No. 25: Artificial Intelligence Regulation Act,
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